

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Kersey	Team: Squad #15	CCRB Case #: 202300959	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/01/2023 4:45 PM, Wednesday, 02/01/2023 5:00 PM	Location of Incident: § 87(2)(b) 48th Precinct stationhouse	18 Mo. SOL 8/1/2024	Precinct: 48		
Date/Time CV Reported Wed, 02/01/2023 9:20 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 02/01/2023 9:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Miguel Penacabrera	30443	973658	048 PCT
2. PO Kristopher Recalde	27157	972195	048 PCT
3. PO Angelo Hernandez	25329	971996	048 PCT
4. PO Steven Martinez	07596	972776	048 PCT
5. An Officer			
6. PO Jonathan Mazza	14291	972097	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Angelo Hernandez	Abuse: At § 87(2)(b) in the Bronx, Police Officer Angelo Hernandez threatened to issue summons to § 87(2)(b)	A . Within NYPD Guidelines
B . PO Angelo Hernandez	Abuse: At § 87(2)(b) in the Bronx, Police Officer Angelo Hernandez threatened to damage/seize § 87(2)(b) property.	B . Within NYPD Guidelines
C . PO Angelo Hernandez	Abuse: At § 87(2)(b) in the Bronx, Police Officer Angelo Hernandez refused to provide his name to § 87(2)(b)	C . Substantiated
D . PO Angelo Hernandez	Abuse: At § 87(2)(b) in the Bronx, Police Officer Angelo Hernandez refused to provide his shield number to § 87(2)(b)	D . Substantiated
E . PO Miguel Penacabrera	Abuse: At § 87(2)(b) in the Bronx, Police Officer Miguel Penacabrera refused to provide his name to § 87(2)(b)	E . Unfounded
F . PO Miguel Penacabrera	Abuse: At § 87(2)(b) in the Bronx, Police Officer Miguel Penacabrera refused to provide his shield number to § 87(2)(b)	F . Unfounded
G . PO Kristopher Recalde	Abuse: At § 87(2)(b) in the Bronx, Police Officer Kristopher Recalde refused to provide his name to § 87(2)(b)	G . Unfounded
H . PO Kristopher Recalde	Abuse: At § 87(2)(b) in the Bronx, Police Officer Kristopher Recalde refused to provide his shield number to § 87(2)(b)	H . Unfounded
I . PO Steven Martinez	Abuse: At § 87(2)(b) in the Bronx, Police Officer Steven Martinez refused to provide his name to § 87(2)(b)	I . Unfounded

Officer(s)	Allegation	Investigator Recommendation
J . PO Steven Martinez	Abuse: At § 87(2)(b) in the Bronx, Police Officer Steven Martinez refused to provide his shield number to § 87(2)(b)	J . Unfounded
K . PO Jonathan Mazza	Abuse: At the 48th Precinct stationhouse, Police Officer Jonathan Mazza did not process § 87(2)(b) complaint regarding (an) officer(s).	K . Substantiated
L . An Officer	Abuse: At the 48th Precinct stationhouse, An Officer did not process § 87(2)(b) complaint regarding (an) officer (s).	L . Officer(s) Unidentified

Case Summary

On February 1, 2023, at 9:20 pm § 87(2)(b) submitted a complaint with the CCRB via phone.

On February 1, 2023, at approximately 4:45 p.m., in the vicinity of § 87(2)(b) in The Bronx, § 87(2)(b) looked out her bedroom window and saw multiple police vehicles outside of her building parked near her car. Police Officer Angelo Hernandez, Police Officer Miguel Pena Cabrera, Police Officer Kristopher Recalde, Sergeant Robert Russo and Police Officer Steven Martinez were looking at § 87(2)(b) vehicle. § 87(2)(b) went out to her balcony and asked the officers what was happening and if they could come upstairs and speak with her. PO Hernandez explained that they were going to give § 87(2)(b) a summons for blocking a garage entrance with her vehicle and they did not need to come up and discuss this. **(Allegation A: Abuse of Authority, within NYPD guidelines)** PO Hernandez also told § 87(2)(b) that her vehicle was going to be towed. **(Allegation B: Abuse of Authority, within NYPD guidelines)** Sgt. Russo also told § 87(2)(b) that her vehicle would be towed. **(Allegation C: Abuse of Authority, within NYPD guidelines)** § 87(2)(b) left her apartment and went outside to speak to the officers. When she got outside, Sgt. Russo had left the location already. § 87(2)(b) received Summons number § 87(2)(b) for VTL violation 408. (Board Review 1) § 87(2)(b) asked PO Hernandez, PO Penacabrera, PO Recalde, and PO Martinez for their name and shield numbers. PO Hernandez refused to provide his name and shield number. **(Allegations D and E: Abuse of Authority, substantiated)** § 87(2)(b) alleged that PO Pena Cabrera, PO Recalde, and PO Martinez refused to provide their name and shield numbers. **(Allegation F, G, H, I, and J: Abuse of Authority, unfounded)** All of the officers got in their vehicles and left after this. Immediately after the police officers left, § 87(2)(b) went to the 48th Precinct stationhouse to file a complaint against the officers and Police Officer Jonathan Mazza refused to file her complaint. **(Allegation K: Abuse of Authority, substantiated)** § 87(2)(b) spoke to another officer who also refused to file her complaint. **(Allegation L: Abuse of Authority, Officer unidentified)** § 87(2)(b) left the stationhouse and called the CCRB to file a complaint.

There is BWC footage depicting the incident outside of § 87(2)(b) apartment building. (Board Review 2)

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Angelo Hernandez threatened to issue summons to § 87(2)(b)

Allegation (B) Abuse of Authority: At § 87(2)(b) in the Bronx, Street Police Officer Angelo Hernandez threatened to damage/seize § 87(2)(b) property.

Allegation (C) Abuse of Authority: At § 87(2)(b) in the Bronx, Street Police Officer Angelo Hernandez refused to provide his name to § 87(2)(b)

Allegation (D) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Angelo Hernandez refused to provide his shield number to § 87(2)(b)

Allegation (E) Abuse of Authority: At § 87(2)(b) in the Bronx, Street Police Officer Miguel Penacabrera refused to provide his name to § 87(2)(b)

Allegation (F) Abuse of Authority: At § 87(2)(b) in the Bronx, Street Police Officer Miguel Penacabrera refused to provide his shield number to § 87(2)(b)

Allegation (G) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Kristopher Recalde refused to provide his name to § 87(2)(b)

Allegation (H) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Kristopher Recalde refused to provide his shield number to § 87(2)(b)

Allegation (I) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Steven Martinez refused to provide his name to § 87(2)(b)

Allegation (J) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Steven Martinez refused to provide his shield number to § 87(2)(b)

It is undisputed that on February 1, 2023, at approximately 16:45 p.m., in the vicinity of § 87(2)(b) in the Bronx, § 87(2)(b) vehicle was parked in front of a driveway. One of § 87(2)(b) neighbors called the police to report that § 87(2)(b) had blocked the driveway to her garage. PO Hernandez, PO Pena Cabrera, PO Recalde, and PO Martinez responded to the location. § 87(2)(b) asked the police officers what they were doing. PO Hernandez explained to § 87(2)(b) that she would be given a summons for her vehicle blocking a driveway and informed her that her vehicle would be towed if she did not move it.

In her CCRB statement, § 87(2)(b) said that after being given the summons, she asked PO Hernandez, PO Pena Cabrera, PO Recalde, and PO Martinez for their names and shield numbers. All of the officers said their shield numbers quickly and § 87(2)(b) did not hear them. § 87(2)(b) did not inform the officers that she had not heard their shield numbers or ask them to repeat their shield numbers. None of the officers said their names. (Board Review 3)

In his CCRB statement, PO Hernandez stated that due to § 87(2)(b) vehicle blocking a driveway, he could issue a summons for the VTL infraction. PO Hernandez also informed § 87(2)(b) that her vehicle would be towed. PO Hernandez did not inform § 87(2)(b) that her neighbor § 87(2)(b) had called the tow truck, and it was not the NYPD who would be towing the vehicle. PO Hernandez did not arrange for § 87(2)(b) vehicle to be towed. PO Hernandez did not provide his name or shield number when § 87(2)(b) asked for it. PO Hernandez did not have an explanation for why he had not provided it. (Board Review 4)

PO Hernandez's BWC footage shows PO Hernandez speaking to § 87(2)(b) shortly after arriving at the location. PO Hernandez tells § 87(2)(b) that the police officers can write a summons for the vehicle and § 87(2)(b) can call a tow truck to remove the vehicle. PO Hernandez spoke to § 87(2)(b) and confirmed that the car blocking the driveway was her car. PO Hernandez told her that she would receive a summons for her vehicle blocking the driveway to the garage unless she moved it immediately. § 87(2)(b) said that they should just give her a summons. PO Hernandez tells § 87(2)(b) that her vehicle will be towed.

§ 87(2)(b) asks the officers for their shield numbers at the 12:20 minute mark. PO Hernandez does not provide his name or shield number. (Board Review 5)

PO Pena Cabrera's BWC footage shows that § 87(2)(b) asks PO Pena Cabrera for his name and shield number. PO Pena Cabrera states his name and shield number to § 87(2)(b) (Board Review 6)

PO Recalde's BWC footage shows that § 87(2)(b) asks for PO Recalde's name and shield number. PO Recalde provides his name and shield number, 27157. § 87(2)(b) asks what he said, and PO Recalde repeats his name and shield number. (Board Review 7)

PO Martinez's BWC footage shows that § 87(2)(b) asks for PO Martinez's name and shield number. PO Martinez states his name and shield number. (Board Review 8)

Title 34 of the New York City Municipal Charter, Chapter 4 Traffic Rules and Regulations, Section F, Part 2, states that no one may park in front of a driveway except for the owner, lessor, or lessee of the lot accessed by a private driveway. Chapter 4, Section A, Part 9, immobilization, and towing of illegally parked vehicles states that any illegally parked vehicle may be towed under the direction of any person authorized by the Commissioner. (Board Review 9)

As shown in PO Hernandez's BWC footage, PO Hernandez told § 87(2)(b) that she would receive a summons for her vehicle blocking a garage driveway if she did not move her vehicle. § 87(2)(b)

§ 87(2)(b). Therefore, it is recommended that **Allegations A and B** be closed as **within NYPD guidelines**.

NYPD Patrol Guide Procedure 304-11 states, "Courteously and clearly state your rank, name, shield number, and command or otherwise provide them, to anyone who requests you to do so." (Board Review 8).

PO Hernandez's BWC footage shows that he did not provide his name and shield number after § 87(2)(b) asked him to provide his name and shield number. § 87(2)(g)

Therefore, it is recommended that **Allegations C and D** be closed as **Substantiated**.

PO Pena Cabrera, PO Recalde, and PO Martinez all provided their names and shield numbers to § 87(2)(b) as shown in the BWC footage. Therefore, it is recommended that **Allegations E, F, G, H, I and J** be closed as **Unfounded**.

Allegation (K) Abuse of Authority: At the 48th Precinct stationhouse, Police Officer Jonathan Mazza did not process § 87(2)(b) complaint regarding officers.

Allegation (L) Abuse of Authority: At the 48th Precinct stationhouse, an Officer did not process § 87(2)(b) complaint regarding officers.

In her CCRB statement, § 87(2)(b) stated that after the incident with the police officers outside of her apartment, she went to the 48th Precinct stationhouse. At the 48th Precinct stationhouse, § 87(2)(b) stated that she spoke to a black female officer wearing a blue uniform and a white male officer wearing a blue uniform. § 87(2)(b) told the police officers that she wanted to file a complaint about the incident and told the black female officer what occurred. The black female officer told § 87(2)(b) that she could not file a complaint. (Board Review 3)

In his CCRB statement, PO Mazza stated that § 87(2)(b) spoke to PO Mazza and informed him of an incident that had occurred earlier that day. § 87(2)(b) told PO Mazza that she would like to file a complaint about the police officers involved in the incident. PO Mazza showed § 87(2)(b) a sign near the door to the stationhouse that has a phone number for the CCRB and told her that she could come back after calling the CCRB if she needed additional help. § 87(2)(b) did not speak to any other officers at the stationhouse. PO Mazza could not recall if any black female police officers were working at the stationhouse when this incident occurred. (Board Review 10)

Sgt. Karen Rojas, who was assigned as the Desk Officer to the 48th Precinct stationhouse was scheduled for an interview, but it was determined that she was not at the stationhouse during this incident. According to Sgt. Rojas, she ended her tour before the incident time. (Board Review 11)

NYPD Patrol Guide Procedure 207-28 Processing Civilian Complaints states that police officers are required to assist the civilian in filing the complaint or inform the desk officer who may process the civilian complaint or assign another police officer to file the complaint. Police officers must also inform the civilian that they can file the complaint by phone, mail, or via the CCRB website if they do not wish to file the complaint in person. (Board Review 12)

The 48th Precinct roll call for February 1, 2023, Tour 3 shows that there were no Black Female police officers working during Tour 3. The 48th Precinct Tour 2 roll call for February 1, 2023, shows that Sgt. Rojas's tour ended at 15:52. (Board Review 13)

PO Mazza stated during his CCRB interview that he provided § 87(2)(b) with a phone number to file a complaint with the CCRB and that he did not offer to file her complaint in person. § 87(2)(g)

Therefore, it is recommended that **Allegation K** be closed as **Substantiated**.

§ 87(2)(b) stated that she spoke to a Black female police officer wearing a uniform at the 48th Precinct stationhouse. The roll call for the 48th Precinct does not list any Black female police officers working on the incident date and time. § 87(2)(g)

Therefore, it is recommended that **Allegation L** be closed as **Officer Unidentified**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Hernandez has been a member of service for 2 years and has been a subject in one other

- CCRB complaint and two allegations, none of which were substantiated.
- PO Pena-Cabrera has been a member of service for one year and this is the first CCRB complaint to which he has been a subject.
- PO Recalde has been a member of service for two years and has been a subject in one other CCRB complaint and five allegations, none of which were substantiated.
- PO Martinez has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- PO Mazza has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of November 1, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 15

Investigator:	<u>David Kersey</u>	<u>Investigator David Kersey</u>	<u>11/29/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u><i>Simon Wang</i></u>	<u>IM Simon Wang</u>	<u>11/29/23</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date